

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE SUBMISSION OF AN APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD FOR A GRANT THROUGH THE LOCAL GOVERNMENT PROJECT ARPA GRANT PROGRAM ON BEHALF OF THE GOVERNING BODY FOR THE CITY OF CHEYENNE FOR THE PURPOSE OF PROVIDING CRITICALLY NEEDED FLOOD CONTROL AT EAST DELL RANGE BOULEVARD AND VAN BUREN AVENUE."

WHEREAS, the governing body for the City of Cheyenne desires to participate in the Local Government Project ARPA Grant program to assist in financing this project;

WHEREAS, the governing body for the City of Cheyenne recognizes the need for the Project;

WHEREAS, the Local Government ARPA Grant program requires that certain criteria be met, as described in the State Loan and Investment Board's Rules and Regulations governing the program, and to the best of our knowledge this application meets those criteria;

WHEREAS, the governing body for the City of Cheyenne requests a grant of up to \$1,900,000 for the cost of the proposed Project;

WHEREAS, the governing body for the City of Cheyenne agrees to provide up to \$1,900,000 from the 5th Penny Sales Tax for the required local match; and,

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that a grant application requesting up to \$1,900,000.00 be submitted to the State Loan and Investment Board, for consideration to State Loan and Investment Board meeting to assist in funding the Van Buren Avenue Flood Control project.

BE IT FURTHER RESOLVED, that Thomas Cobb, City Engineer is hereby designated as the authorized representative of the City of Cheyenne to act on behalf of the governing body on all matters relating to this funding application.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Grants Manager
DATE: JANUARY 19, 2023
SUBJECT: SLIB LOCAL GOVERNMENT APRA GRANT – VAN BUREN AVE

Wyoming State Land and Investment Board received federal American Rescue Plan grant funds that have been made available through specific grant programs.

In July, the City applied for Water and Sewer grant funds but was not chosen for funding. We were invited to reapply under the Local Government ARPA funding in December. The City will be submitting a grant request to provide critically needed flood control at East Dell Range Boulevard and Van Buren Avenue. The grant is scored on a point system, so we are working to maximize our competitiveness to receive these funds. The project is estimated to cost up to \$2M and the City Engineer anticipates using up to 50% match funds from the 5th Penny Tax fund.

If you have any questions or need further clarification, please give me a call at 637-6285 or email at rsmith@cheyennecity.org



**VAN BUREN AVENUE STORM SEWER
INTERCEPTOR PROJECT
August 9, 2022**

**WYOMING OFFICE OF STATE LANDS AND INVESTMENTS
Water and Sewer ARPA Grants**



OFFICE OF THE CITY ENGINEER
2101 O'Neil Avenue, Room 206
Cheyenne, Wyoming 82001

August 9, 2022

Ms. Beth Blackwell
Grants and Loan Manager
State of Wyoming – Office of State Lands and Investments (SLIB)
Herschler Building, 1W
Cheyenne, WY 82002

**Re: Van Buren Avenue Storm Sewer Interceptor Project
Maintenance and Matching Funds Commitment**

Dear Ms. Blackwell,

The purpose of this letter is to formally document that our matching funds for our component projects will be made available through the duration of the project.

If the State of Wyoming State Land and Investment Board (SLIB) awards the grant to the City of Cheyenne for the improvements, the local match is anticipated to come from the following: 5th Penny Drainage and Roadway funds and 5th Penny Overage Accounts.

Furthermore, the City of Cheyenne anticipates providing future maintenance of the constructed facility utilizing our 5th Penny Drainage accounts from both contracting and City of Cheyenne Public Works crews.

If you have any questions or require additional information, please contact me directly.

Respectfully,

Thomas D. Cobb, PE
City Engineer

Cc:
Honorable Mayor Patrick J. Collins, City of Cheyenne
Ms. Robin Lockman, City Treasurer, City of Cheyenne
Ms. Renee Smith, Grants Manager, City of Cheyenne

Resolution

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

APPROVED

By Stefanie Boster at 9:21 am, Aug 09, 2022

RESOLUTION NO. 6258

ENTITLED: "A RESOLUTION AUTHORIZING THE SUBMISSION OF AN APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD FOR A GRANT THROUGH WATER AND SEWER ARPA GRANT PROGRAM FUNDING ON BEHALF OF THE GOVERNING BODY FOR THE CITY OF CHEYENNE FOR THE PURPOSE OF PROVIDING CRITICALLY NEEDED FLOOD CONTROL AT EAST DELL RANGE BOULEVARD AND VAN BUREN AVENUE."

WHEREAS, the governing body for the City of Cheyenne desires to participate in the Water and Sewer ARPA Grant program to assist in financing this project: and

WHEREAS, the governing body for the City of Cheyenne recognizes the need for the Project: and

WHEREAS, the Water and Sewer ARPA Grant program requires that certain criteria be met, as described in the State Loan and Investment Board's Rules and Regulations governing the program, and to the best of our knowledge this application meets those criteria: and

WHEREAS, the governing body for the City of Cheyenne requests a grant of up to \$1,900,000 for the cost of the proposed Project: and

WHEREAS, the governing body for the City of Cheyenne agrees to provide up to \$1,900,000 from the 5th Penny Sales Tax for the required local match: and

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that a grant application requesting up to \$1,900,000.00 be submitted to the State Loan and Investment Board, for consideration to State Loan and Investment Board meeting to assist in funding the Van Buren Avenue Flood Control project.

BE IT FURTHER RESOLVED, that Thomas Cobb, City Engineer is hereby designated as the authorized representative of the City of Cheyenne to act on behalf of the governing body on all matters relating to this funding application.

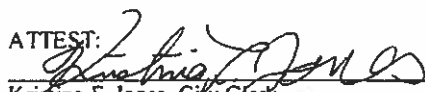
PRESENTED, READ AND ADOPTED this 9th day of August, 2022.



Patrick Collins, Mayor

(SEAL)

ATTEST:


Kristina F. Jones, City Clerk

Certification

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

OFFICE OF STATE LANDS AND INVESTMENTS
Water and Sewer ARPA Grant Program
Certification Statement

WHEREAS, the Governing Body for the

CITY OF CHEYENNE

Hereby certifies that the funding being applied for under the WATER AND SEWER ARPA GRANTS program will be used in accordance with all requirements and conditions of the ARPA, 2022 Wyo. Sess. Laws Ch. 50, and this Chapter. If it is determined that the funds were not used as intended, the recipient shall refund disbursed funds to the Office within fifteen (15) Business Day following notification

Furthermore, it is certified that I have read the information on evidence based interventions and project demographic distributions. If my project has either denotation, I have included the requirements and the dollar amount of the total project spending that is allocated towards evidence based interventions and/or project demographic distribution in the verbiage of the project description.

BE IT FURTHER RESOLVED, that

Thomas Cobb, City Engineer

(Name and Title of Person(s))

are hereby designated as the authorized representatives of the

CITY OF CHEYENNE

to act on behalf of the Governing Body on all matters relating to this grant application.

PASSED, APPROVED AND ADOPTED THIS

8th

(Date)

day of

August

(Month)

2022

(Year)

(Signature)

Patrick J. Collins, Mayor

(Name and Title)

Attest:

(Signature)

Kristina F. Jones, City Clerk

(Name and Title)

ARPA Justification

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

ARPA Justification for Water Projects

In support of the City of Cheyenne's application for the Van Buren Avenue Stormwater Sewer Interceptor Project, please find below an explanation of how the proposed project is eligible under the Treasury's Final Rule.

A. Detailed description of the how the project responds to an identified need to achieve or maintain an adequate minimum level of service

As Cheyenne continues to expand, the need for affordable housing is becoming critical. The project area has been identified for infrastructure development for the safety of residents and businesses. Stormwater drainage is critical to mitigate flood risk and to reduce the amount of runoff and runoff pollution. The project area is also located within a federally designated Opportunity Zone. Stormwater mitigation for this area will facilitate continued economic growth.

B. Explanation of how the proposed project will provide an adequate minimum level of service

Our proposed storm sewer interceptor will be designed for the 50-year storm event providing the best benefit-cost over other storm frequencies evaluated for the storm drainage system. The 50-year design provides significantly more flood protection for our benefit area and will positively impact the east side of Cheyenne.

C. Explanation of how the project is cost effective

As stated above, a cursory benefit-cost evaluation was completed for a range of storm frequencies and the most cost-effective approach was determined to be a 50-year storm event protection for the proposed storm sewer interceptor. The 50-year design combined with the storm drainage conveyance capacity within the street curb & gutter sections of the design corridor will provide a high level of flood protection for the benefit area.

D. Explanation of how the project will be maintained

All stormwater sewer systems including inlets and lateral piping and detention storage outlet structures are routinely inspected and maintained by City of Cheyenne construction staff inspectors and Public Works staff. Moreover, as a part of the City's MS4 Stormwater Management Plan (SWMP), the City also contracts work out to assist with the overall maintenance of our stormwater system.

Application & Contact Information

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Applicant:	City of Cheyenne
Project Name:	Van Buren Avenue Storm Sewer Interceptor Project
Date:	8/10/2022
Address:	2101 O'Neil Avenue
City:	Cheyenne
State:	WY
Zip Code:	82001-3512
Phone:	
E-Mail:	
Fax:	
Federal EIN:	83-6000050
Unique Entity ID:	KURKMKZUFMY2
DUNS #:	075758169
Contact Person:	Renee Smith
Address:	2101 O'Neil Avenue, Room 311
City:	Cheyenne
State:	WY
Zip Code:	82001-3512
Phone:	307-637-6285
E-Mail:	rsmith@chevannecity.org
Fax:	855-484-6855
Engineer Contact:	Thomas Cobb
Address:	2101 O'Neil Avenue
City:	Cheyenne
State:	WY
Zip Code:	82001-3512
Phone:	307-637-4314
E-Mail:	tcobb@chevannecity.org
Fax:	
Other:	Gene MacDonald
Address:	929 Apache Street
City:	Cheyenne
State:	WY
Zip Code:	82009-4326
Phone:	307-214-7065
E-Mail:	gene@glmdesigngroup.com
Fax:	

General Information

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

State of Wyoming State Loan and Investment Board Water and Sewer ARPA Grants

Applicant **City of Cheyenne, City Engineer's Office**

Entity Type **City**

Name of Project **Van Buren Avenue Storm Sewer Interceptor Project**

Project Priority **1** of **1**

Brief project description limited to 50 words or less.

Our proposed storm sewer interceptor project addresses a critical area of flood risk on the east side of our community. This project will significantly reduce and/or eliminate the flood risk to both City and County residents as well as commercial businesses located within and adjacent to our project corridor. The existing flood risk affects a federally designated Opportunity Zone. This project will help to facilitate continued economic growth for this area of our community. This project is at a 65% design level with an anticipated design completion by September 30, 2022. The City is proposing a 50% match with funding from the City of Cheyenne's dedicated Drainage Account.

Amount of Funding Requesting

\$1,900,000

NOTE: This amount must match the amount on the submitted resolution

List all other funding sources for the project in the table below including the status and amount expended, if any.

Other Funding Source Description	Amount	Status*		Amount Expended	Funding %
		Pending	Approved		
City's Dedicated Drainage Account	\$1,900,000		X		50%
					0%
					0%
					0%
Total Other Funding	\$1,900,000			\$0	

Documentation to support the status of each funding source must be attached to the Application Packet.

Estimated Total Project Cost:

\$3,800,000

Auto Calculated
(Amount Requested plus Total Other Funding)

Balance of Project Incomplete:

\$3,800,000

Auto Calculated
(Estimated Project Costs less Amount Expended)

Estimated Reimbursement Rate:

50%

Auto Calculated
(Amount Requested/Estimated Project Costs)
(Final Reimbursement Rate is Determined by Board Approved Amount)

I certify that I am authorized to sign this application on behalf of our governing body, and the applicant will comply with all appropriate requirements, if approved. To the best of my knowledge and belief, the information in this application is true and correct. I understand the State may review any relevant documents or instruments relating to the analysis of this application. I further certify by signing and submitting this application that all program eligibility criteria have been reviewed and this application reflects the criteria. I understand that if grant funds spent are later found to be ineligible, the applicant will be requested to pay back the ineligible funds within 15 days to the Office of State Lands and Investments.

Signature (electronic signature if submitting electronically: s/John Doe)

Date

Patrick Collins, Mayor
Name and Title (typed)

Project Information

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Applicant: City of Cheyenne, City Engineer's Office

Project Name: Van Buren Avenue Storm Sewer Interceptor Project

Project Priority 1 of 1

1. Population served by project: 20,000

2. Annual Median Household Income: AMHI Tables \$68,611

3. Engineer's estimate of useful life of project: 50-years

4. If your project was listed on the 2022 IUP, provide it's ranking
Drinking Water SRF 2022 IUP Clean Water SRF 2022 IUP

5. What is the current status of the project?

Project has been designed and is ready to bid OR has gone out to bid and bids exceeded available funds.

6. Provide a description of the specific health or safety requirements the project will address and if the project is needed to meet Federal or State health and/or safety requirements. Districts must include a statement that the District owns the Sewer/Water system in its entirety.

The main focus of this project is the east side of the City, north of U.S. 30 and south of Dell Range Blvd., between Dry Creek on the west and Whitney Road to the east. Much of this area is a county pocket located within the corporate limits of Cheyenne. This benefit area is located within a federally designated flood zone and has negligible storm drainage infrastructure and currently experiences significant flood risk due to overland shallow flooding. Our community is experiencing residential and commercial growth within and adjacent to this area. The existing flood risk is impeding continued growth for the east side of our community and flood mitigation is required to ensure continued vitality and economic growth for these neighborhoods. There are existing septic drain fields within some neighborhoods of the benefit area. Excessive shallow flooding has the potential to impact the performance of these facilities causing hardship for residents and potential contamination. There is significant potential for property damages due to flooding and for impacts to the traveling public along the E. Dell Range Blvd. and Van Buren Avenue corridors. Moreover, as a MS4 regulated community, Cheyenne and Laramie County, as part of the Cheyenne Urbanized Area, are required to ensure stormwater quality for nonpoint discharges into Dry Creek. Uncontrolled overland shallow flooding through neighborhoods has potential to convey significant sediments and contaminated material into Dry Creek. Our proposed storm sewer interceptor project will provide flood protection for downstream residents and businesses and ensure a higher level of stormwater quality for our receiving drainages. With respect to the community's MS4 requirements, our proposed project is a proactive mitigation effort to ensure continued compliance with the DEQ's stormwater permit. Cheyenne is currently experiencing significant growth on the east and south sides of our community. The east side of Cheyenne has significant potential for economic growth and enjoys additional incentives due to the location of the federally designated Opportunity Zone. This project will provide a significant level of flood protection for these east side neighborhoods and can be described as a regional storm drainage infrastructure project for this area of our community. The project will benefit both city and county residents and businesses.

7. Does the project include the construction or rehabilitation of a dam or dams? NO

8. Is the project needed mainly for fire protection? NO

9. Will the project finance the expansion of a drinking water system to attract future population growth? NO

10. Is the project creating, enhancing, or in compliance with a regionalization plan? YES

10a. Please explain below:

The project will provide significant flood protection and a higher level of stormwater quality to the east side of Cheyenne. The project will intercept storm drainage runoff from multiple sub-basins and effectively convey this discharge directly to Dry Creek. Our proposed mitigation for addressing the existing flood risk and stormwater quality issues will facilitate continued economic growth within this area of our community. This area is attracting commercial growth along with an increase in population.

11. What percentage of your existing water/sewer system connections will benefit from this project? N/A

12. If the project results in additional water supply, will more than 25% of the new water be devoted to commercial or industrial users? NO

12a. If Yes, please provide details.

13. Describe the extent to which private developers or subdividers will benefit from the project.

This project will have a significant impact on development occurring along the E. Dell Range Blvd. corridor. The Whitney Ranch development with hundreds of new residential units along with future residential and commercial development anticipated for this area of Cheyenne will benefit from this project. This growth is forecasted in Cheyenne's comprehensive plans for the community and is in line with recommendations from PlanCheyenne and other planning documents. Our proposed project will facilitate continued economic growth in line with our residents and business owners expectations for the east side of Cheyenne. The ARPA investment of 50% of the project cost will pay dividends in continued population and commercial growth for our community.

14. Does the project include the purchase of a building or land?

NO

If yes, a market analysis must be completed to determine the fair market value of the asset. Please include the market analysis with your submitted application.

14a. Market Analysis is attached to the appli

15. Are the requested funds to supplemental funding for a planned or ongoing project that has already incurred higher project costs given the bidding environment and supply chain issues?

NO

15a. If yes, provide the initial project costs and new project costs below.

Initial Project Cost

Percent Increase

#DIV/0!

Auto Calculates

New Project Cost

16. Which of the following statements best describes the project's ability to eliminate any EPA or DEQ regulatory violations?

Proposed project will prevent noncompliance that does not currently exist

17. Is there a plan for completing the project if, for any reason, the awarded funds are not expended by the established deadline? Explain below

YES

This project will be put out to bid in October. The project is needed to address an existing flood risk that is impeding continued growth on the east side of Cheyenne. The City Engineer's Office is committed to completing project construction in 2023. ARPA funding for this project will allow the City Engineer's Office to spread their financial resources further and address other critically needed infrastructure in the city.

18. Describe what led you to conclude the proposed project is needed.

18a. The project is part of an approved Master Plan for our system.

YES

18b. We prepared a formal Engineering Report to address specific problems with our system. The proposed project was deemed the best alternative.

YES

18c. This is an emergency project. No formal engineering investigation/review was conducted.

18d. Other - explain below

The Van Buren Storm Sewer Interceptor Project is currently under design and at a 65% level design. We are anticipating design completion and preparation of bid documents by October, making our proposal a "shovel-ready" project for consideration for ARPA funding.

Questions 19-23 below are for Districts Only:

19. District formation documentation is attached:

20. Date District Formed:

21. Geographical Area:

sdg

22. Number and Types of Lots Served:

sfg

Estimated Budget & Timeline

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Applicant: City of Cheyenne, City Engineer's Office

Project Name: Van Buren Avenue Storm Sewer Interceptor Project

Estimated Project Budget Table By Funding Source

1. All funding sources and all project related expenses must be included in the table below.

Completed By:

City Engineer's Office

Completed For:

City of Cheyenne

Activity Costs:	Funding Source: \$	Funding Source: \$	Funding Source: \$	Funding Source: \$	Total
Administration					\$0
Legal					\$0
Land Acquisition					\$0
Engineering- Basic	186,869	186,869			\$373,738
Engineering- Resident Project Rep. Services	155,724	155,724			\$311,448
Engineering- Additional Services					\$0
Construction	1,487,261	1,487,261			\$2,974,522
Contingency	70,146	70,146			\$140,292
Total Project Costs	\$1,900,000	\$1,900,000	\$0	\$0	\$3,800,000
Funding Source Percentage By Project Costs	50%	50%	0%	0%	100%

ERROR CHECK - If false, this table does not match information on the General Information Tab.
If True, information in this tables matches the General Information Tab.

TRUE

PROJECT TIMELINE

Task	Date	Actual/Estimate
Design Project	10/28/2022	ESTIMATE
Contract documents submitted to SRF Staff for approval	10/28/2022	ESTIMATE
Apply for DEQ Permit to Construct	10/28/2022	ESTIMATE
All permits, easements, Right of Ways approved or finalized/signed	11/30/2022	ESTIMATE
Publish call for bids approved by SRF Staff	12/23/2022	ESTIMATE
Construction start date	2/15/2023	ESTIMATE
Substantial completion date	3/15/2024	ESTIMATE
Construction end date	4/30/2024	ESTIMATE



Project #: N/A
 Project Name: ENGINEER'S OPINION OF COST WHITNEY RANCH OFFSITE IMPROVEMENTS
 Compiled By: C. Pickett, T. Cobb
 Date: 8.8.2022

Item	Quantity	Unit	Unit Price	Total
1020.01 BONDS AND INSURANCE*	1	LS	\$ 34,000.00	\$ 34,000.00
1020.02 CONTRACTOR TESTING*	1	LS	\$ 15,000.00	\$ 15,000.00
1020.03 POTHOLING UTILITIES (NON-DESTRUCTIVE)*	1	LS	\$ 20,000.00	\$ 20,000.00
1020.04 MOBILIZATION*	1	LS	\$ 145,000.00	\$ 145,000.00
1050.01 TRAFFIC CONTROL*	1	LS	\$ 60,000.00	\$ 60,000.00
1050.02 CONSTRUCTION SURVEYING*	1	LS	\$ 30,000.00	\$ 30,000.00
1050.03 STORMWATER MANAGEMENT & EROSION CONTROL*	1	LS	\$ 20,000.00	\$ 20,000.00
1563.01 CRUSHED BASE, GRADING "W" - 6"	1,480	Ton	\$ 7.71	\$ 11,410.80
2512.01 PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING "D" - 2"	9,522	SY	\$ 17.27	\$ 164,444.94
2512.04 PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING "A" - 4"	9,522	SY	\$ 34.00	\$ 323,748.00
5110.60 MACHINE PLACE RIPRAP (D50 - 12 INCH)*	980	SF	\$ 10.00	\$ 9,800.00
6082.18 18 INCH RCP	272	LF	\$ 129.00	\$ 34,968.00
6082.24 24 INCH RCP	600	LF	\$ 143.44	\$ 86,064.00
6082.36 36 INCH RCP	272	LF	\$ 208.86	\$ 56,800.92
6082.42 42 INCH RCP	5,144	LF	\$ 285.74	\$ 1,469,846.56
6083.42 RCP FE SECT 42 INCH	1	EA	\$ 1,800.00	\$ 1,800.00
6250.60 STORM SEWER MANHOLE (60 INCH)	8	EA	\$ 6,790.80	\$ 53,944.80
6251.72 STORM SEWER MANHOLE (72 INCH)	14	EA	\$ 9,000.00	\$ 126,000.00
6252.84 STORM SEWER MANHOLE (84 INCH)	2	EA	\$ 15,000.00	\$ 30,000.00
6253.96 STORM SEWER MANHOLE (96 INCH)	1	EA	\$ 17,750.00	\$ 17,750.00
6252.01 INLET TYPE "A" (WITH SLURRY BACKFILL)	10	EA	\$ 4,200.00	\$ 42,000.00
6252.02 INLET TYPE "AA" DOUBLE (WITH SLURRY BACKFILL)	1	EA	\$ 10,000.00	\$ 10,000.00
6253.03 INLET TYPE "B"	1	EA	\$ 4,000.00	\$ 4,000.00
7000.10 DIVERSION BOX	1	LS	\$ 20,000.00	\$ 20,000.00
7001.01 DETENTION POND OUTLET STRUCTURE (COMPLETE IN PLACE)	1	LS	\$ 8,000.00	\$ 8,000.00
Subtotal				\$ 2,852,319.02
CONTINGENCY (5%)	1	LS	\$ 142,292.00	\$ 142,292.00
PROJECTED FROM 2021 TO 2023 CONSTRUCTION COSTS (INFLATION ASSUMED AT 3%/YR)	1	LS	\$ 168,351.00	\$ 168,351.00
Subtotal Construction Costs				\$ 3,162,962.02
ENGINEER DESIGN (12%)	1	LS	\$ 379,798.40	\$ 379,798.40
CONSTRUCTION ENGINEERING (10%)	1	LS	\$ 311,448.00	\$ 311,448.00
Subtotal Professional Fees				\$ 691,246.40
TOTAL PROJECT				\$ 3,854,208.42
FOR ESTIMATE				\$ 3,854,208.42

Financial Information

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Applicant: City of Cheyenne

Project Name: Van Buren Avenue Storm Sewer Interceptor Project

1. List Outstanding Debt/Lease/Bond (if any), associated with the system for which you are applying.

Lender	Current Balance	Payment Amount	Interest rate	Payment Frequency	Maturity date or Years remaining
See Attached					

2. Is there an actual or potential financial impact on the applicant from litigation?

NO

2a. If yes, please describe below:

N/A

3. Provide one (1) copy of the last three (3) years of financial statements; preferably prepared by an independent auditor/CPA.

- If applying through hard copy, these can be submitted on a thumb drive or as hard copies. If applying through the portal, please upload these in the supporting documentation file.
- If the current year is not available, please explain why.
- Detail in the table below the type of financial statement you are submitting, the fiscal year it covers as well as whether it is a hard copy or on a thumb drive.

Note: If an independent audit has not been performed, then the applicant should submit the last three years of Financial Forms used by the Wyoming Department of Audit (Survey of Local Government Finances F-32 and F-66WY4 for Special Districts, Annual City and Town Financial Report F-66WY2 for Cities and Towns).

Submitted	Year	Thumb Drive	Hard Copy	Uploaded
AUDIT	2019	X		
AUDIT	2020	X		
AUDIT	2021	X		

If 2021 financial statements are not available, explain below.

4. Submit one copy of the approved current annual budget and next year's budget when approved.

	Year	Thumb Drive	Hard Copy	Uploaded
Current Budget	2023	X		
Next Budget	2024	not available		

Fiscal Year	2020	2021	2022
Property Assessments Collected	\$ 5,862,109.00	\$ 6,136,321.00	\$ 6,544,855.00
Property Assessments Levied	\$ 5,862,109.00	\$ 6,136,321.00	\$ 6,544,855.00

5. Provide a letter from the County Assessor with dollar amount of the assessment being collected and assessor's list of properties being assessed.

5a. Supporting assessment documentation attached:

YES

6. Provide the following information for the past three (3) Fiscal Years (2019-2021 or 2020-2022)

Total Investments
Year Amount

Total Cash Balances
Year Amount

2019	\$48,785,456.00
2020	\$84,125,492.00
2021	\$107,764,023.00

2019	\$11,824,559.00
2020	\$18,164,940.00
2021	\$37,669,033.00

7. Provide the prior three (3) years (2019-2021 or 2020-2022) net income for the enterprise account for which you are requesting funding. If you are requesting funding for a project that includes a water and sewer component provide the information for both enterprise accounts.

Water		
Year	Amount	%
2019	\$1,682,341.00	
2020	\$3,586,227.00	112%
2021	\$2,698,728.00	-24%

Sewer		
Year	Amount	%
2019	\$3,424,892.00	
2020	\$3,941,934.00	15%
2021	\$3,230,629.00	-18%

8. Provide the following information related to reserve accounts enterprise account for which funds are being requested for the past three (3) Fiscal Years (2019-2021 or 2020-2022)

Water Reserve Account	
Year	Amount
2019	\$231,101,926.00
2020	\$234,668,153.00
2021	\$237,368,881.00

Sewer Reserve Account	
Year	Amount
2019	\$71,598,530.00
2020	\$75,540,464.00
2021	\$78,771,093.00

General Fund Reserve	
Year	Amount
2019	\$22,707,047.00
2020	\$27,883,128.00
2021	\$28,969,395.00

Other	
Year	Amount

9. Was Direct ARPA funding received by the applicant?

YES

9a. If Direct ARPA funding was received, provide the amount received and how those funds have been spent. If they have not been spent, what is the plan to spend them?

In May 2021, the City was awarded through the U.S. Department of the Treasury Coronavirus State and Local Fiscal Recovery Fund (SLFRF) \$12,191,813 to aid in economic recovery and public health efforts. Revenue Recovery funds were authorized by the US Department of the Treasury for the provision of government services. After careful consideration of the eligible uses for the ARP funds and recognizing the needs that were identified during the COVID pandemic as shortfalls in service and disaster preparedness, the City's Department Directors drafted a thoughtful and comprehensive list of priorities. Transformational change not only prepares for inevitable challenges, but it also requires an intentionality of focus directed toward the future and raising the economic conditions of an entire community. The City held several Governing Body work sessions, public comment periods, and staff discussions to consolidate and prioritize needs that would leverage existing resources to achieve the maximum benefit.

Project Expenditure Category Group	Project Name	Adopted Budget	Total Obligations	Total Expenditures
1.7 Public Health - Facilities	Emergency Maintenance in a Public Facility	\$7,340.00		\$7,340.00
1.7 Public Health - Facilities	Emergency Maintenance in a Public Facility	42,143.00	-	42,143.00
2.16 Long Term Housing				
Security-Services for Unhoused Persons	COMEA Shelter - Stage Coach Motel purchase	650,000.00	-	650,000.00
4 - Premium Pay	Essential Employee Premium Pay	1,700,221.98	-	1,700,221.98
6 - Revenue Replacement	Civic Center Fund Revenue Replacement	218,714.00	189,503.99	29,208.01
6 - Revenue Replacement	Ice & Events Center Fund Revenue Replacement	340,532.00	-	340,532.00
6 - Revenue Replacement	Recreation Programs Fund Revenue Replacement	427,399.00	-	427,399.00
6 - Revenue Replacement	Employee Retention Payments	843,291.17	-	843,291.17
6 - Revenue Replacement	Audit administration fee	\$,800.00		\$,800.00
6.1 - Revenue Replacement - Provision of Government Services				
	OpenGov Technology Software Upgrades	1,471,607.64	1,471,607.64	-
6.1 - Revenue Replacement - Provision of Government Services				
	Technology Administration	18,504.03		18,504.03
6.1 Revenue Replacement - Provision of Government Services				
	Ortal Management Software purchase	24871.31		\$ 24,871.31
		5,800,324.13	1,661,113.63	4,139,210.30

**Cheyenne Board of Public Utilities
Debt Service Requirements
Water Fund & Sewer Fund
June 30, 2022**

Lender	Current Balance 6/30/2022	Payment Amount	Interest Rate	Payment Frequency	Maturity Date
WATER					
2004 SLIB WTR MAIN REHAB(DWSRF #034)	136,400.18	\$ 47,729.00	2.5%	Annually	12/1/2025
2005 DWSRF #056 - WEST HILLS	340,991.09	\$ 61,885.00	2.5%	Annually	3/1/2028
2007 DWSRF #065 - S WTR MAIN	2,124,718.90	\$ 334,582.00	2.5%	Annually	9/1/2029
2007 CWSRF #084 ADMIN BUILDING	157,900.41	\$ 18,041.25	2.5%	Annually	6/1/2032
2007 CWSRF #081 WTR REUSE PHASE II	586,953.59	\$ 81,843.00	2.5%	Annually	9/1/2030
2009 DWSRF #079 30" WTR TR MAIN/WAFB	2,866,016.82	\$ 329,107.00	2.5%	Annually	9/1/2031
2009 DWSRF #106 ADMIN BUILDING CONST	1,044,098.89	\$ 119,298.50	2.5%	Annually	6/1/2032
2009 CWSRF #115 ADMIN BUILDING CONST	1,044,098.88	\$ 119,298.50	2.5%	Annually	6/1/2032
2013 DWSRF #133 HYDROELECTRIC	5,400,740.54	\$ 370,000.00	2.5%	Annually	20 years
2012 DWSRF #120 S. TRANSMISSION MAIN	4,931,743.98	\$ 480,772.00	2.5%	Annually	6/1/2034
2015 CWSRF #143 HOLLIDAY REUSE	562,500.00	\$ 37,500.00	0.0%	Annually	6/1/2037
2016 DWSRF #177 S WATER TRAN PH III	2,435,673.44	\$ 186,808.00	2.5%	Annually	3/1/2038
2013 WATER REFUNDING NOTE	3,270,000.00	\$ 980,000.00	2.41%	Annually	7/1/2026
NORTH CITY IMPROVEMENTS DW #229	165,178.92	\$ 254,023.00	2.5%	Annually	20 years
	<u>25,067,015.64</u>				
SEWER					
03 CWSRF #046 CCDCWWTP	8,798,490.42	\$ 2,338,163.00	2.5%	Annually	6/1/2026
06 CWSRF #060 WAFB/PARSLEY	1,109,557.78	\$ 174,898.00	2.5%	Annually	9/1/2029
2007 CWSRF #084 ADMIN BUILDING	52,633.46	\$ 6,013.75	2.5%	Annually	6/1/2032
2009 DWSRF #106 ADMIN BUILDING CONST	348,032.97	\$ 39,765.50	2.5%	Annually	6/1/2032
2009 CWSRF #115 ADMIN BUILDING CONST	348,032.96	\$ 39,765.50	2.5%	Annually	6/1/2032
2013 CWSRF #133 CC IMPROVEMENTS	3,522,743.39	\$ 320,738.00	2.5%	Annually	6/15/2039
2016 CWSRF #144 S INTERCEPTOR	1,142,161.86	\$ 83,391.00	2.5%	Annually	12/1/2039
2017 CWSRF #159 S INTERCEPTOR	8,698,002.00	\$ 635,057.00	2.5%	Annually	12/1/2039
	<u>24,019,654.84</u>				



LARAMIE COUNTY ASSESSOR

KENNETH GUILLE

August 9, 2022

Renee Smith
Grants Manager – City of Cheyenne
2101 O'Neil Avenue, Room 311
Cheyenne, WY 82001

Re: Van Buren Avenue Flood Control Data Request

Ms. Smith,

This letter is in response to the information requested by your department.

The City of Cheyenne should anticipate collecting seven million, five hundred thirty three thousand, five hundred forty four dollars (\$7,533,544) of ad valorem taxes for the 2022 tax year. This number is calculated by taking the assessed value of the City (\$941,693,050) times the levy of eight (8) mills.

As requested, I have included a list of the active assessments within the City via email (rsmith@cheyennecity.org).

Please feel free to contact me with any questions or concerns you may have.

Cordially,


Kenneth Guille
Laramie County Assessor

Assessed properties worksheet - Thumb Drive

Laramie County 2022 Mill Levy Summary

August 1, 2022

<i>Taxing Authority</i>	<i>Valuation</i>	<i>Amount Requested</i>	<i>Mill Levy</i>	<i>Amount Levy Generates</i>
State Foundation	2,480,513,587		12.00	29,766,163
County General	2,480,513,587		10.00	24,805,136
Library Operation			2.00	4,961,027
Laramie County Community College	2,480,513,587			
Voter Approved ~ Operations			4.00	9,922,054
Board Approved ~ Operations			1.00	2,480,514
Bond Redemption			0.78	1,934,801
Bond Interest			0.10	248,051
Voter Approved ~ 1 Mill			1.00	2,480,514
School District #1	1,972,743,418			
6 Mill			6.00	11,836,461
Operating			25.00	49,318,585
Board Approved ~ Recreation Mill			1.00	1,972,743
School District #2	507,770,169			
6 Mill			6.00	3,046,621
Operating			25.00	12,694,254
Board Approved ~ Recreation Mill			1.00	507,770
Cheyenne	941,693,050		8.00	7,533,544
Cheyenne DDA	19,595,196	387,000	20.00	391,904
Albin	815,959		5.00	4,080
Burns	3,563,197		5.00	17,816
Pine Bluffs	13,964,253		5.00	69,821
Fire District #1	420,687,975	1,262,064	3.00	1,262,064
Fire District Bond Redemption	420,687,975	600,000	1.43	601,584
Fire District Bond Interest	420,687,975	23,280	0.06	25,241
Laramie County Fire Authority	551,150,418	1,918,251	3.00	1,653,451
Fire District #3	143,001,363	429,004	3.00	429,004
Fire District #4	119,684,652	359,054	3.00	359,054
Fire District #5	36,222,238	108,667	3.00	108,667
Fire District #6	208,861,916	626,586	3.00	626,586
Fire District #9	3,548,177	55,250	3.00	10,645
Fire District #10	55,663,798	167,500	3.00	166,991
SCWSD	64,981,231	519,850	8.00	519,850
DEI & SD	617,338	0	0.00	0
Carpenter W & SD	533,630	6,690	8.00	4,269
Laramie County Weed & Pest	2,480,513,587	1,984,411	0.80	1,984,411
Leafy Spurge Special Mgt	2,480,513,587	0	0.00	0
Laramie County Conservation District	2,480,513,587	1,249,140	0.50	1,240,257
Eastern LC Solid Waste District	507,770,169	1,523,311	3.00	1,523,311
Total Estimated Property Tax Revenues				174,507,243

Rate Information (1&2)

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Applicant: City of Cheyenne

Project Name: Van Buren Avenue Storm Sewer Interceptor Project

Water/Sewer System Utilization: WATER

	Annual Usage (Gallons)	% of Total Usage	Annual Revenue (\$)	% of Total Revenue
Residential	2,042,943	0.15%	\$ 11,974,695.00	62%
Commercial	817,886,000	59.48%	\$ 4,547,065.00	23%
Other	555,071,000	40.37%	\$ 2,892,775.00	15%
Total	1,374,999,943	100%	\$ 19,414,535.00	100%

Number of Residential Connections: 22808
Number of Commercial Connections: 1721
Number of Other Connections: 128
Total Number Current Connections: 24655

Number of Connections Affected By Proposed Project: 0

Water Meters in Use? YES

Water/Sewer Rate Effective date: 1/1/2022

Check box to confirm Current Rate Ordinance is provided with application: YES

Are rates scheduled to be increased? YES

If yes, date of expected rate increase 1/1/2023

Residential Rate Structure:

Base Rate Thumb Drive For up to: gallons
Overage Block 1 per gallons
Overage Block 2 per gallons
Overage Block 3 per gallons
Overage Block 4 per gallons
Overage Block 5 per gallons

Commercial Rate Structure:

Base Rate For up to: gallons
Overage Block 1 per gallons
Overage Block 2 per gallons
Overage Block 3 per gallons
Overage Block 4 per gallons
Overage Block 5 per gallons

Other Rate Structure:

Base Rate For up to: gallons
Overage Block 1 per gallons
Overage Block 2 per gallons
Overage Block 3 per gallons
Overage Block 4 per gallons
Overage Block 5 per gallons

Applicable Engineer's rate study reports attached? NO

Applicant: City of Cheyenne

Project Name: Van Buren Avenue Storm Sewer Interceptor Project

Water/Sewer System Utilization: SEWER

	Annual Usage (Gallons)	% of Total Usage	Annual Revenue (\$)	% of Total Revenue
Residential	2,042,943,000	59.81%	\$ 11,974,685.00	62%
Commercial	817,886,000	23.94%	\$ 4,547,065.00	23%
Other	555,071,000	16.25%	\$ 2,892,775.00	15%
Total	3,415,900,000	100%	\$ 19,414,535.00	100%

Number of Residential Connections: 22722
Number of Commercial Connections: 1680
Number of Other Connections: 136
Total Number Current Connections: 24538

Number of Connections Affected By Proposed Project: 0

Water Meters In Use? YES

Water/Sewer Rate Effective date: 1/1/2022

Check box to confirm Current Rate Ordinance is provided with application: YES

Are rates scheduled to be increased? YES

If yes, date of expected rate increase 1/1/2023

Residential Rate Structure:

Base Rate Thumb Drive For up to: gallons
Overage Block 1 per gallons
Overage Block 2 per gallons
Overage Block 3 per gallons
Overage Block 4 per gallons
Overage Block 5 per gallons

Commercial Rate Structure:

Base Rate For up to: gallons
Overage Block 1 per gallons
Overage Block 2 per gallons
Overage Block 3 per gallons
Overage Block 4 per gallons
Overage Block 5 per gallons

Other Rate Structure:

Base Rate For up to: gallons
Overage Block 1 per gallons
Overage Block 2 per gallons
Overage Block 3 per gallons
Overage Block 4 per gallons
Overage Block 5 per gallons

Applicable Engineer's rate study reports attached? NO

Summary of Prior Relief Funding
Van Buren Avenue Storm Sewer Interceptor Project
City of Cheyenne

Section 7(c)vii: The amount of any CARES grants awarded by the State and any ARPA State and Local Fiscal Recovery Funds the applicant has received and a brief summary of how the funds were spent, or plan to be spent.

Throughout 2020, the City of Cheyenne applied for and was awarded ten (10) separate federal CARES Act grants for COVID-19 related expenditures through the State Land and Investment Board (SLIB) totaling \$5,863,084, of which \$2,463,652 was spent, leaving \$3,399,432 in unused dollars.

CARES Act Grant Summary (CFDA #21.019)

GRANT PURPOSE:	Total
COVID-19 PPE Expenses	\$ 178,085.44
COVID-19 Technology Expenses	\$ 192,547.00
COVID-19 Additional Sanitizing Equipment & Technology Expenses App. 1	\$ 94,472.91
COVID-19 Additional Sanitizing Equipment & Technology Expenses App. 2	\$ 71,631.99
COVID-19 Payroll Expenses	\$ 762,194.42
COVID-19 Public Safety Payroll Expenses	\$ 317,120.40
COVID-19 Livestream Equipment for City Council	\$ 16,617.56
COVID-19 Homeless Quarantine Expenses	\$ 37,154.36
COVID-19 Fire Dept. Administration	\$ 657,424.48
COVID-19 BOPU Expenses	\$ 136,403.44
	<u>\$ 2,463,652.00</u>

CARES funds were used for payroll and benefit costs of public health employees who were responding to the COVID-19 public health emergency and to purchase critically needed Personal Protective Equipment (PPE). The City also invested in computers, equipment, and other technology upgrades to allow staff to transition to remote work while improving online services for constituents. Funds were also used to assist the COMEA homeless shelter and cover some administrative costs for the Fire Department.

In May 2021, the City was awarded through the U.S. Department of the Treasury Coronavirus State and Local Fiscal Recovery Fund (SLFRF) \$12,191,813 to aid in economic recovery and public health efforts. Revenue Recovery funds were authorized by the US Department of the Treasury for the provision of government services. After careful consideration of the eligible uses for the ARP funds and recognizing the needs that were identified during the COVID pandemic as shortfalls in service and disaster preparedness, the City's Department Directors drafted a thoughtful and comprehensive list of priorities. Transformational change not only prepares for inevitable challenges, but it also requires an intentionality of focus directed toward the future and raising the economic conditions of an entire community. The City held several Governing Body work sessions, public comment periods, and staff discussions to consolidate and prioritize needs that would leverage existing resources to achieve the maximum benefit.

The chart below details expenses to date. Remaining Revenue Recovery funds will be used for infrastructure projects, technology upgrades, and other government services as needs are identified.

American Rescue Plan SLFRF Grant Summary to Date (CFDA #21.019)

Project Expenditure Category Group	Project Name	Adopted Budget	Total Obligations	Total Expenditures
1.7 Public Health - Facilities	Emergency Maintenance in a Public Facility	57,240.00		57,240.00
1.7 Public Health - Facilities	Emergency Maintenance in a Public Facility	42,143.00	-	42,143.00
2.16 Long Term Housing Security-Services for Unhoused Persons	COMEA Shelter - Stage Coach Motel purchase	650,000.00	-	650,000.00
4 - Premium Pay	Essential Employee Premium Pay	1,700,221.98	-	1,700,221.98
6 - Revenue Replacement	Civic Center Fund Revenue Replacement	218,714.00	189,505.99	29,208.01
6 - Revenue Replacement	Ice & Events Center Fund Revenue Replacement	340,532.00	-	340,532.00
6 - Revenue Replacement	Recreation Programs Fund Revenue Replacement	427,399.00		427,399.00
6 - Revenue Replacement	Employee Retention Payments	843,291.17	-	843,291.17
6 - Revenue Replacement	Audit administration fee	5,800.00		5,800.00
6.1 - Revenue Replacement - Provision of Government Services	OpenGov Technology Software Upgrades	1,471,607.64	1,471,607.64	-
6.1 - Revenue Replacement - Provision of Government Services	Technology Administration	18,504.03		18,504.03
6.1 Revenue Replacement - Provision of Government Services	Grant Management Software purchase	24871.31		\$ 24,871.31
		5,800,324.13	1,661,113.63	4,139,210.50

CW Related Projects

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Applicant City of Cheyenne, City Engineer's Office

Project Name Van Buren Avenue Storm Sewer Interceptor Project

All CW related projects funded with ARPA dollars must meet the eligibility requirements established in the below EPA CWSRF Eligibility Handbook.

[EPA CWSRF Eligibility Handbook](#)

1. National Pollutant Discharge Elimination System (NPDES) Permit Number WYR04-0000

2. Provide the proportionate cost of the project for each project category below.

	%	Dollars
Secondary Treatment	0%	
Advanced Treatment	0%	
Infiltration/Inflow Correction	0%	
Major Sewer Rehabilitation	0%	
New Collectors	0%	
New Interceptors	0%	
Corrections of Combined Sewer Overflows	0%	
Storm Sewers	100%	\$3,800,000
Nonpoint Source	0%	
Other	0%	

Total Project Funding: \$3,800,000

Auto Calculate

Amount matches General Information Tab

TRUE

3. Based on the information above, which Project Category do you believe your project best fits?

5.60

- 5.1 Centralized Wastewater Treatment
- 5.2 Centralized Wastewater Collection and Conveyance
- 5.3 Decentralized Wastewater
- 5.4 Combined Sewer Overflows
- 5.5 Other Sewer Infrastructure
- 5.6 Stormwater
- 5.7 Energy Conservation
- 5.8 Water Conservation
- 5.9 Nonpoint Source
- 5.16 Water and Sewer: Private Wells
- 5.17 Water and Sewer: IJJA Bureau of Reclamation Match

Project Mapping

Van Buren Avenue Storm Sewer Interceptor Project

City of Cheyenne

Van Buren Ave. Storm Sewer Interceptor

Proposed Drainage Conveyance



Map of Opportunity Zones

